

24NWCV00256 24NWCV00256

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-08-31

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Case Number: 24NWCV00256 Hearing Date: August 31, 2026 Dept: C

DYNAPRO, INC., et al.

vs CGM INTERMODAL SHIPPERS INC., et al., Case No. 24NWCV00256

Plaintiffs Dynapro, Inc.,

Mario Scaturchio, and Joseph Scaturchio apply ex parte for the issuance of an Order to Show Cause directing Defendants CGM Intermodal Shippers, Inc., Paola Mata, and Eddie Gomez (aka Edward Gomez) to appear and show cause why they should not be adjudged in contempt for violating the Court's March 20, 2026, Order. On March 20, 2026, upon motion by Plaintiffs, the Court appointed the Honorable Chad W. Firetag (Ret.) to serve as a discovery referee pursuant to Code of Civil Procedure §638 to hear and determine all discovery disputes arising out of the Court's October 2025 discovery orders, including disputes concerning the production of CGM's financial records, bank statements, and QuickBooks files, data, and records. (3/20/26 Minute Order, ¶1.) The costs and fees of the Discovery Referee shall be shared equally by the parties, unless otherwise ordered by the Court. (Id., ¶4.) Within thirty (30) days of the Order, CGM shall provide to the Discovery Referee a complete native copy of its QuickBooks data on a flash drive or USB drive (id., ¶5) and a complete copy of its bank statements for the period of January 1, 2024, through December 31, 2024, for purposes of in camera review (Id., ¶6). In this ex parte application, Plaintiffs contend that Defendants have refused to pay their court-ordered share of the Discovery Referee's \$10,600 supplemental retainer. (Ferris Decl., ¶26.) Defendants told the Discovery Referee that Eddie Gomez cannot pay the supplemental retainer fee, so they will either ask Plaintiffs to cover the entire fee or seek Court Intervention for the Referee to be relieved. (Discovery Referee Report No. 2.) Plaintiffs decline to pay the entire fee, and no request to modify the Court's March 20 Order has been filed by Defendants.

Plaintiffs' request for the issuance of an Order to Show Cause re Contempt is DENIED. In the alternative, Defendants are Ordered to Show Cause on October 2, 2026 at 9:30 a.m. in Dept. SE-C why sanctions should not be imposed under CCP §177.5 for failure to pay their one-half share of the Discovery Referee's supplemental fee. Additionally, an evidentiary hearing re Defendants' present ability to pay their share of the supplemental fee is set for October 2, 2026 at 9:30 a.m. in Dept. SE-C. Defendants Paola Mata and Eddie Gomez are ordered to appear in person. Each Defendant is further ordered to file and serve financial documentation establishing their own present ability to pay Defendants' one-half share of the supplemental fee by September 17, 2026. Plaintiffs may file a response by September 24, 2026. Moving party to give notice.